

22TRCV00916 22TRCV00916

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-08

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Case Number: 22TRCV00916 Hearing Date: July 8, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

MICHAEL

SENDAYDIEGO,

Plaintiff,

Case No.:

22TRCV00916

vs.

[Tentative]

RULING

HILTON

WORLDWIDE, INC., et al.,

Defendants.

Hearing

Date: July 8,
2026

Moving Parties: Defendants Hilton
Worldwide Inc., TRCF Redondo, LLC, and Nadine Koch

Responding

Party: None

Motion

to Compel Responses to Request for Production of Documents, Set One

The Court considered the moving papers. No opposition was filed.

RULING

The motion is GRANTED.

Plaintiff

Michael Sendaydiego is ordered (1) to serve on defendants a verified response without objections to defendants' Request for Production, Set One, and (2) to produce all documents and things in plaintiff's possession, custody, or control, which are responsive to defendants' request, within twenty days.

BACKGROUND

On

October 10, 2022, plaintiff Michael Sendaydiego filed a complaint against Hilton Worldwide, Inc., Park Hotels & Resorts, Inc., Hilton Garden Inn Los Angeles/Redondo Beach, and Nadine Koch for (1) battery, (2) negligence, (3) IIED, (4) fraudulent concealment, (5) breach of contract, (6) private nuisance, and (7) public nuisance.

On January 4, 2024, plaintiff filed a request for dismissal as to Park Hotels & Resorts, Inc.

On July 16, 2024, plaintiff filed an amendment designating Redondo Industrial Park LLC as Doe 1.

On April 1, 2025, the Court granted defendants' motion to strike with leave to amend as to paras. 64, 93, and 111, and prayer at 2 and granted it without leave to amend as to para. 82.

LEGAL AUTHORITY

Where there has been no timely response to a CCP §2031.010 demand, the demanding party must seek an order compelling a response. CCP §2031.300. Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required. Weil & Brown, Civil Procedure Before Trial, 8:1487.

DISCUSSION

Defendants Hilton Worldwide, Inc., TRCF Redondo, LLC, and Nadine Koch request an order compelling plaintiff Michael Sendaydiego to respond to defendants' initial request for production of documents.

Defendants state that on December 4, 2025, they propounded written discovery on plaintiff. Plaintiff's counsel's office confirmed receipt and that the deadline to respond was January 6, 2026. On January 6, plaintiff's counsel requested a three-week extension to respond to January 27. On January 12, defense counsel's office confirmed the extension. On January 27, plaintiff did not serve responses. On January 30, defense counsel followed up with plaintiff's counsel's office, which responded that they had incorrectly calendared the deadline and agreed to serve objection-free responses by February 6. As of the filing date on April 21, defense counsel had not received any responses.

The Court rules as follows: The Court finds that defendants properly served their discovery requests and that plaintiff failed to respond. See Christian Ji Seup Yun decl., Exh. 1, wherein plaintiff's counsel's office states in an email, "I am confirming receipt of these requests. I have the due date calendared as January 6, 2026."

The motion is GRANTED.

ORDER

The motion is GRANTED.

Plaintiff

Michael Sendaydiego is ordered (1) to serve on defendants a verified response without objections to defendants' Request for Production, Set One, and (2) to produce all documents and things in plaintiff's possession, custody, or control, which are responsive to defendants' request, within twenty days.

Defendants

are ordered to give notice of ruling.